

In re: Janice A. Pankey Trust, 23PR-0079

**Hearing: Melanie Taylor’s Motion to Strike Amended Petition to Remove the
Appointed Guardian Ad Litem
Kendra Sabi’s Motion to Strike Amended Petition to Remove the Appointed
Guardian Ad Litem
Kendra Sabi’s Demurrer to the Amended Petition to Remove the Appointed
Guardian Ad Litem**

Date: June 24, 2026

Janice Pankey Tannehill (Tannehill) established the Janice A. Pankey Trust dated August 5, 1992 (the Trust). Tannehill, now deceased, had four children, Kendra Sabi (Sabi), Lora Eade (Eade), Chadburn Pankey, and James Pankey.

A. The Initial Trust Proceeding

In April 2023, Sabi filed a petition under Probate Code section 17200, against her brothers, alleging documents executed by Tannehill on March 10, 2023 were invalid due to the settlor’s lack of capacity and undue influence. In July 2023, Sabi filed a DOE amendment naming attorney Dennis Leonard (Leonard) as an additional respondent in the first (invalidation of documents due to lack of capacity), second (undue influence), and third (financial elder abuse) causes of action.

On February 27, 2025, Sabi filed a petition seeking an order invalidating the Sixth Amendment and Complete Restatement to the Revocable Trust executed on October 1, 2024. Sabi argued the amendment was void due to the settlor’s incapacity. On March 3, 2025, Eade¹ also filed a petition to invalidate the Sixth Amendment based on the settlor’s alleged incapacity. The Sixth Amendment was prepared by Leonard’s law firm, Ramsbacher Prokey Leonard LLP (RPL). (Pet., Ex. C.) RPL and Leonard represented Tannehill during her lifetime in this trust proceeding.

The Sixth Amendment signed on January 29, 2024, divided the Trust’s property between the settlor’s four children if living or the descendants of any previously deceased or disinherited heirs. The Sixth Amendment then provided that Sabi and Eade would be determined to have predeceased the settlor.

In February 2025, the Court appointed Melanie Taylor (Taylor) as the guardian ad litem to represent the interests of Sabi and Eade’s minor children. Paragraph 4 of the order appointing the guardian ad litem states, “The guardian ad litem is authorized to waive or disclaim any substantive rights of the represented person without further order of this court.” (RJN, Ex. C [02/03/25 Order, ¶ 4].)

¹ Eade has subsequently passed away. On June 2, 2026, the Court appointed her husband, James Eade, as her successor of interest for purposes of this trust proceeding.

On May 28, 2025, Sabi submitted a Petition for Approval of Settlement Agreement and Mutual Release. The agreement was reached by the four siblings, John Tannehill (the settlor's surviving spouse), and the guardian ad litem. The settlement was reached during mediation with Honorable Glen M. Reiser (retired). No settlement was reached with RPL, Leonard, or Rebecca Lilley. Leonard and RPL filed objections to the settlement petition.

On October 2, 2025, Leonard and RPL filed a petition seeking (a) removal of the guardian ad litem based on the terms of the settlement, (b) appointment of a new guardian ad litem, and (c) an order requiring a new mediation between the parties. RPL filed an amended petition on November 3, 2025, with the same claims, but removing Leonard as a named petitioner and dropping any claims against Sabi (the November Petition).

B. Related Proceedings

On May 10, 2024, Sabi submitted a petition seeking acceptance of Tannehill's prior resignations, removal of Rebecca Lilley as a co-trustee, and appointment of a third party fiduciary. The petition was filed as a new case *In re: Janice P. Tannehill 2012 Irrevocable Trust dated 11/19/2012* (Case No. 24PR-0320). RPL filed an opposition to the petition on behalf of Tannehill on the day before she died. Barry Vanderkelen is serving as successor trustee of the Trust.

In November 2024, Vanderkelen initiated a related estate proceeding (24PR-0379). He was issued Testamentary Letters on March 11, 2025, and is currently serving as the estate's personal representative. RPL has filed a creditor's claim in the estate matter and is currently seeking a court order compelling the matter to arbitration (25CV-0391).

Currently on calendar are (1) Taylor's motion to strike the November Petition pursuant to Code of Civil Procedure section 425.16; (2) Sabi's motion to strike the November Petition pursuant to Code of Civil Procedure section 425.16; and (3) Sabi's Demurrer to the November Petition pursuant to Code of Civil Procedure sections 430.10.

As set forth below, the Court grants Taylor's motion to strike, denies Sabi's motion to strike, and sustains Sabi's demurrer without leave to amend.

I. ANTI-SLAPP MOTIONS

A. Legal Standard

"The anti-SLAPP statute enables defendants to quickly terminate meritless actions against them that are based on their constitutionally protected rights to speak freely and petition for redress of grievances. (§ 425.16.) It allows litigants to file a special motion to strike 'at an early stage,' in which the trial court uses a 'summary-judgment-like procedure' to evaluate the claims. [Citation.]" (*Dziubla v. Piazza* (2020) 59 Cal.App.5th 140, 147-148 (*Dziubla*).)

To determine if the anti-SLAPP statute applies, the Court follows a two-step process. First, the moving party must establish that the claim at issue arises from conduct in furtherance of the

defendant's constitutional right to petition or right to free speech in connection with a public issue. A prima facie showing is sufficient on this issue. (*Governor Gray Davis Com. v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 456.)

If the moving party satisfies that initial step, then the burden shifts to the opposing party to demonstrate a probability of prevailing on his or her claim. (*Urlick v. Urlick* (2017) 15 Cal.App.5th 1182, 1191.) At this stage, “ [t]he court does not weigh evidence or resolve conflicting factual claims ... [but rather] accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law.” (*Dziubla, supra*, 59 Cal.App.5th at p. 148, citations omitted.)

B. Taylor's Motion to Strike

1. Taylor Has Shown the Claims in the November Petition Arise from Protected Activity

The anti-SLAPP protects, among other things, “any written or oral statement or writing made before a ... judicial proceeding,” “any written or oral statement or writing made in connection with an issue under consideration or review by a ... judicial body ...,” or “any other conduct in furtherance of the exercise of the constitutional right of petition” (§ 425.16, subd. (e)(1), (2), (4).) “[N]egotiating and executing a settlement agreement is protected activity” (*O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC* (2019) 42 Cal.App.5th 546, 572.)

“RPL agrees with Ms. Taylor that her settlement negotiations during mediation and otherwise, and entering settlement are considered protected activity under the anti-SLAPP statute.” (Opp., p. 3, ll. 3-5.) However, RPL argues the November Petition does not arise from Taylor's participation in mediation, negotiations, and entering into the settlement agreement but rather her breach of fiduciary duty to the minors she represents. Specifically, the fact that she agreed to relinquish their rights under the Sixth Amendment without any reciprocal benefit.

RPL argues that its “claims are *evidenced by* protected activity is not enough to establish that the claim *arises from* said protected activity.” (Opp., p. 4, ll. 24-25.) In support, RPL cites *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060, which states, “a claim may be struck only if the speech of petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” “[T]he focus is on determining what ‘the defendant's activity [is] that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Id.* at p. 1063.)

Here, the act underlying the request for relief in the November Petition is Taylor's agreement to the mediated settlement agreement. It is that act which allegedly gives rise to the harm suffered by the minors. (Compare *Gaynor v. Bulen* (2018) 19 Cal.App.5th 864, 880-881 [activity giving rise to alleged harm was plan to benefit one class of beneficiaries over another by wrongfully withdrawing trust assets to initiate and defend probate petitions; “it was not the petitioning activity itself that is the basis of the breach of fiduciary claim”]; *White v. Davis* (2023) 87 Cal.App.5th

270, 288-290 [underlying acts of isolation and undue influence, not litigation, were reason for petition seeking restraining order]; *Greco v. Greco* (2016) 2 Cal.App.5th 810, 823 [“claim for recovery was not based on the wrongful act of pursuing meritless or wasteful litigation, but on taking trust and estate funds”]; *Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1020-1021, *as modified on denial of reh’g* (Jan. 26, 2023) [core injury-producing conduct is the waste and misuse of trust assets; no allegation that “either the Petition for Instructions or elder abuse litigation *in itself* produced the injury or gave rise to liability”].)

The November Petition alleges Taylor breached her fiduciary duties because she compromised the minor’s fundamental rights without a reciprocal benefit. (Amd. Pet., p. 3, ll. 8-11 [Taylor “assented to an agreement” where the minors gave up their right under the Sixth Amendment without receiving anything in return].) That compromise was the result of the settlement negotiations and the execution of the settlement agreement which are protected activities. Taylor has therefore met her burden to show the claim against her arises out of protected activity.

2. RPL Has Not Shown a Probability of Success on the Merits

Taylor argues RPL lacks standing under Probate Code sections 48 and 17200.² “ ‘Standing is the threshold element required to state a cause of action’ [Citation.]” (*Robinson v. Southern Counties Oil Co.* (2020) 53 Cal.App.5th 476, 481 (*Robinson*)). RPL responds that interested persons have the right to petition to remove a guardian ad litem. In support, RPL cites *Chui v. Chui* (2022) 86 Cal.App.5th 929 (*Chui II*). In *Chui II*, the appellate court determined the trial court had erred when it struck petitions to remove a guardian ad litem filed by the minor wards through independent counsel. (*Id.* at p. 936.) The appellate court did not address the specific issue of whether the minors were interested persons. Instead, the issue presented was whether a minor capable of making informed decisions could petition the court for removal of a guardian ad litem with the assistance of their own retained counsel (*Id.* at pp. 936-937 [two of the minors had reached the age of majority by the time of the appeal].) Clearly, minors were interested persons for purposes of seeking to remove the guardian ad litem appointed to represent them.

The definition of “interested person” set forth in Probate Code section 48 includes a creditor ... and any other person having a property right in or claim against a trust estate ... which may be affected by the proceeding.” (Prob. Code, § 48(a).) “The meaning of ‘interested person’ as it relates to particular persons may vary from time to time and shall be determined according to the particular purposes of, and matter involved in, any proceeding.” (Prob. Code, § 48(b).)

RPL argues as a creditor it is an interested person because “the Sixth Amendment guarantees the debts of the estate.” (Opp., p. 9, l. 11.) The Sixth Amendment is not at issue in the November Petition. RPL has not set forth any evidence showing it is an interested person for purposes of

² Probate Code section 17200(b)(20) states, “Determining the liability of the trust for any debts of a deceased settlor. However, nothing in this paragraph shall provide standing to bring an action concerning the internal affairs of the trust to a person whose only claim to the assets of the decedent is a creditor.”

enforcing Taylor’s fiduciary obligations to the minors. It has therefore failed to show it has standing to bring any such claim against Taylor as grounds for her removal.³ Without standing, RPL has not shown a probability of success on the merits.

Taylor’s motion to strike is granted.

C. Sabi’s Motion to Strike

1. Sabi Has a Right to File an Anti-SLAPP Motion in Response to the November Petition

RPL argues Sabi lacks “standing” to file this anti-SLAPP motion because the November Petition does not state a cause of action against her. (See *Foundation for Taxpayer & Consumer Rights v. Garamendi Garamendi* (2005) 132 Cal.App.4th 1375 [anti-SLAPP statute limited to lawsuits “against” a person; no reasonable basis for moving party to conclude lawsuit was brought against it].) The Court disagrees.

Sabi, as the mother of some of the minors for whom the guardian ad litem was appointed and as the person who sought Taylor’s appointment, has a direct interest in any action to remove the guardian ad litem. (*Iloh v. Regents of Univ. of California* (2023) 94 Cal.App.5th 947, 955-956 [“A real party in interest may bring an anti-SLAPP motion if it has a direct interest in the subject of the mandamus proceeding and will be impacted by the litigation’s outcome”].) She therefore has a right to file an anti-SLAPP motion in response to the November Petition.

2. Sabi Has Not Shown the Claims in the November Petition Arise Out of Sabi’s Protected Activity

Sabi argues the November Petition takes issue with the following protected activities “Kendra’s selection and petition for appointment of Melanie Taylor, the court appointed Guardian ad Litem ..., and Kendra’s actions in negotiating, entering into, and petitioning for approval of the Settlement Agreement reached pursuant to the February 12, 2025 mediation.” (Mtn., p. 2, ll. 8-13.)

Like its response to Taylor’s motion, “RPL agrees with Kendra that selection of a GAL, the GAL’s settlement negotiations during mediation and otherwise, and entering settlement are considered protected activity under the anti-SLAPP statute.” (Opp., p. 3, ll. 21-23.) RPL argues that regardless, “Kendra must show that the protected activity is the ‘injury-producing conduct’ that

³ Taylor did not provide any authority supporting the argument that agreeing to the terms of the settlement agreement constituted a communicative act protected by the litigation privilege set forth in Civil Code section 47(b). (*Mancini & Associates v. Schwartz* (2019) 39 Cal.App.5th 656, 661 [threshold issue is whether the questioned conduct was communicative or noncommunicative].) The Court therefore is not persuaded by Taylor’s argument the November Petition is barred by the litigation privilege.

formed the basis of the claims. [Citation.]” (Opp., p. 3, ll. 23-25.) Again, it argues the November Petition “arises *solely* from the GAL’s breach of her fiduciary duties to the minors.” (Opp., p. 4, ll. 1-2.) As discussed above, that breach arises out of Taylor’s negotiations and execution of the settlement agreement.

Sabi’s motion, however, focuses on the November Petition’s allegations involving her, not Taylor. Sabi argues “RPL’s requested relief depends on the premise that Kendra’s protected petitioning and settlement activities were wrongful.” (Reply, p. 5, ll. 9-10.) Not so.

While Sabi might have a direct interest in RPL’s petition to remove Taylor as the guardian ad litem for purposes of filing an anti-SLAPP motion, her litigation related conduct is not the basis for the breach of fiduciary claim. (Opp., pp. 1-2 [“T]he amended petition seeks the removal of the GAL based on her breach of fiduciary duties of loyalty”].) Instead, the November Petition references Sabi’s activities to raise an inference of collusion between Sabi and Taylor. (Amd. Pet., p. 2-3 [“the mischief surrounding the selection of both the GAL, and her counsel ... all but assuring that the GAL would *not* faithfully perform her charge”].) The November Petition, however, does not seek relief for fraud or collusion. (Opp., p. 2, fn. 4 [no claim for relief against Sabi].)

Sabi has failed to show the claims in the November Petition arise out of her own protected activities. Sabi’s motion to strike is therefore denied.

II. DEMURRER

A. Legal Standard

A demurrer challenges only the defects that appear on the face of the pleading under attack, or from matters outside the pleading which are subject to judicial notice. (Code Civ. Proc., § 430.30(a).) When ruling on a demurrer, the court “ ‘treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusion of fact or law.’ [Citation.]” (*Los Angeles Waterkeeper v. State Water Resources Control Bd.* (2023) 92 Cal.App.5th 230, 264, additional quotation marks omitted (*Waterkeeper*).) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

B. Discussion

Sabi demurs to the November Petition on the ground it fails to state a cause of action and is uncertain. (Code Civ. Proc., § 430.10(e), (f).) With respect to the former, Sabi argues the November Petition fails to state a cause of action because (1) RPL lacks standing; (2) the November Petition fails to allege facts stating a cause of action; and (3) the deadline to file the November Petition ended on April 5, 2025.

The Court overrules the demurrer based on the April 5, 2025 deadline because the November Petition does not question Taylor’s initial appointment, but instead seeks her removal based on her

post-appointment actions. Moreover, “[a]n order appointing a guardian ad litem or revoking an appointment is not appealable.” (*In re Marriage of Caballero* (1994) 27 Cal.App.4th 1139, 1149.)

The Court overrules the demurrer for failure to allege facts sufficient to state a cause of action. While the November Petition includes conjecture regarding collusion, it nonetheless states a cause of action for breach of fiduciary duty. “The elements of a cause of action for breach of fiduciary duty are: (1) the existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach. [Citation.]” (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.) The November Petition alleges Taylor owed a fiduciary duty to the minors, that she breached that fiduciary duty by agreeing to the settlement, and that the minors are damaged by the loss of their rights under the Sixth Amendment.

The Court also overrules the demurrer based on uncertainty. Although the November Petition does not identify any specific respondent or identify any specific causes of action, demurrers for uncertainty are sustained “ ‘ “only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” ’ ” [Citations.]” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) That is not the case here. The November Petition seeks removal of Taylor as the guardian ad litem, appointment of a new guardian ad litem, and asks the Court to set aside the settlement agreement signed by Taylor based on an alleged breach of fiduciary duty. This is sufficient for pleading purposes.

1. The Demurrer Based on RPL’s Lack of Standing is Sustained Without Leave to Amend

“Standing is the threshold element required to state a cause of action” (*Robinson, supra*, 53 Cal.App.5th at p. 481.) Sabi argues RPL lacks standing under Probate Code sections 48 and 17200. RPL argues the latter does not apply because the November Petition was not brought pursuant to Probate Code section 17200.⁴ RPL states the petition was filed pursuant to case law. Specifically, *Chui II, supra*, 86 Cal.App.5th 929, 936 which provides:

The Probate Code provides for the appointment of guardians ad litem (Prob. Code, § 1003), but includes no substantive or procedural provisions governing their removal. Courts have, however, allowed interested person to petition to remove a guardian ad litem [Citations.]

⁴ The November Petition cites Probate Code sections 1003 (appointment of guardian ad litem in action filed under the Probate Code) and 17206 (court may make any orders necessary to dispose of the matters presented by the petition [i.e., a petition brought pursuant to Probate Code section 17200]), and Code of Civil Procedure section 372 (general rule that minor shall be represented by either a guardian of the estate or guardian ad litem; appointment of guardian ad litem in a civil proceeding). None of these provisions provide authority to petition for removal of a guardian ad litem.

As discussed above, while the definition of “interested person” set forth in Probate Code section 48 includes a creditor, “[t]he meaning of ‘interested person’ as it relates to particular persons may vary from time to time and shall be determined according to the particular purposes of, and matter involved in, any proceeding.” (Prob. Code, § 48(b).)

RPL argues it is an interested person as “a creditor who has a property right in the Trust which may be affected by the proceeding.” (Opp., p. 3, ll. 21-23.) RPL, however, has no interest in the settlement proceedings between the siblings and the minors with respect to whether the Sixth Amendment is a valid trust document (i.e., the internal affairs of the Trust). Nor does RPL have an interest in whether the guardian ad litem sufficiently represented those interests.

“To have standing, a party must be beneficially interested in the controversy; that is, he or she must have ‘some special interest to be served or some particular right to be preserved or protected over and above the interest held in common with the public at large.’ [Citation.] The party must be able to demonstrate that he or she has some such beneficial interest that is concrete and actual, and not conjectural or hypothetical.’ [Citation.]” (*Abernathy v. Superior Court* (2007) 157 Cal.App.4th 642, 646.)

As for Probate Code section 17200(b)(20), although the November Petition was not filed pursuant to Probate Code section 17200, it does seek to affect litigation involving the internal affairs of the Trust. To that extent, Probate Code section 17200(b)(20) reinforces the conclusion that RPL is not an interested party for purposes of seeking Taylor’s removal as the guardian ad litem for the minors in connection with Sabi’s underlying petitions which do concern the internal affairs of the Trust.

In light of RPL’s lack of standing to seek the relief requested in the November Petition, the demurrer is sustained without leave to amend.

Order

Taylor’s motion to strike the November Petition pursuant to Code of Civil Procedure section 425.16 is granted.

Sabi’s motion to strike the November Petition pursuant to Code of Civil Procedure section 425.16 is denied.

Sabi’s Demurrer to the November Petition is sustained without leave to amend.

The Court grants RPL’s requests for judicial notice in connection with its opposition to the anti-SLAPP motions and demurrer are granted. (Evid. Code, § 452(d).) Sabi’s requests for judicial notice in support of her demurrer are granted. (Evid. Code, § 452(d).)